

HOUSE BILL 904

By Gant

AN ACT to amend Tennessee Code Annotated, Title 4,
Chapter 5; Title 27, Chapter 1 and Title 57,
Chapter 1, relative to recovery of costs.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 57-1-213, is amended by adding the following as a new subsection:

(d) Notwithstanding this section or another law to the contrary, a judge, hearing officer, or administrative judge may award a person or entity that prevails in an administrative or civil action brought against the person or entity by the commission, or challenging the actions of the commission, attorneys' fees and costs incurred as a result of the administrative or civil action.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.